

Ishtiyak Ahmad v. State of U.P.

Allahabad High Court · Division Bench · 20 July 2011 · Writ - C No. 39823 of 2011 · **Writ dismissed; Executive Engineer to decide pending 6.5 complaint in two months.**

HEADNOTE

A consumer alleging electricity bills not based on actual meter reading has a remedy under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. Mandamus to compel a correct bill is refused; the pending complaint before the Executive Engineer is to be decided within two months.

FACTUAL SUMMARY

Ishtiyak Ahmad sought a mandamus directing the respondents to issue a correct electricity bill, alleging that the bills he received were not based on actual meter reading. He had already submitted complaints dated 24 February 2011 and 29 March 2011 to the Executive Engineer. Respondents' counsel submitted that paragraph 6.5 of the U.P. Electricity Supply Code, 2005 governed complaints of incorrect billing. A further complaint dated 13 July 2011 remained pending before the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

incorrect bills / meter reading

HOLDING

A complaint that electricity bills are not based on actual meter reading is to be considered under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The writ seeking a mandamus to furnish a correct bill is dismissed, with a direction that the pending complaint before the Executive Engineer be decided expeditiously within two months of production of a certified copy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer alleging electricity bills not based on actual meter reading has a remedy under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. Mandamus to compel a correct bill is refused; the pending complaint before the Executive Engineer is to be decided within two months. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY BILLS WERE IN FACT INCORRECT OR NOT BASED ON ACTUAL METER READING

Left to the Executive Engineer under paragraph 6.5. ¶ 1